

[doc. web n. 10015285]

Provision of March 21, 2024

Register of provisions

n. 178 of March 21, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the report from the Police Headquarters of Rome - IV District of Public Security
San Basilio – which reports on a control carried out on December 10, 2022, at the accommodation
facility named "Hotel Imperatori," located in Rome, via Gonella 15, which confirmed the presence of a
functioning video surveillance system not indicated by appropriate informational signs;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The report received and the initiation of the procedure.

By note dated February 24, 2023, the Financial Police of Rome – Special Unit for Privacy Protection
and Technological Fraud transmitted to this Authority the report of the control carried out on December
10, 2022, by the Police Headquarters of Rome, at the accommodation facility "Hotel Imperatori"
located in Rome, via Gonella 15, registered to Imperatori Immobiliari s.r.l., which confirmed the
presence, at the aforementioned company, of a functioning video surveillance system, placed both
inside and outside the facility, in the absence of appropriate informational signs.

Therefore, the Office, by note dated May 25, 2023 (prot. n. 83501), proceeded to notify Imperatori
Immobiliari s.r.l. of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of
the Code in relation to the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

By note dated June 27, 2023, the Company sent defensive writings stating that:

- the informational signs regarding the presence of cameras had been temporarily removed in order to
carry out renovation work that affected the entire structure;
- that at the end of the work, the Company was unable to reposition the informational signs "due to a
delay in the supply and installation of some light points in the reception area";
- that it had arranged, immediately after the control carried out on-site by the Financial Police, to place
suitable informational signs regarding the presence of cameras in the reception area, in the corridors,
and at the entrance of the facility.

What was stated by the party is substantiated by photographic documentation attached to the
defensive writings.

2. The legal framework of the processing carried out

The use of video surveillance systems may result, in relation to the positioning of cameras and the
quality of the images captured, in the processing of personal data. Such processing must be carried
out in compliance with the general principles contained in Article 5 of the Regulation and, in particular,

the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a monitored area.”

For this purpose, the data controller must place appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that “Such information can be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

3. The outcome of the investigation and the sanctioning procedure.

The processing of personal data carried out by the Company through the video surveillance system is deemed unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

Based on the assessment carried out, it has indeed emerged that the video surveillance system, installed at the accommodation facility named “Hotel Imperatori,” located in Rome at Via Gonella 15 and managed by Imperatori Immobiliari s.r.l., was active and operational, and that no sign containing the information required by Article 13 of the Regulation was posted.

In this specific case, it is therefore established that personal data processing was carried out through a video surveillance system, in the absence of the required information. This conduct is in contrast to what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all the information regarding the essential characteristics of the processing.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation

The processing of personal data carried out by Imperatori Immobiliari s.r.l. is therefore deemed unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation.

The violation established in the terms of the reasoning cannot be considered “minor,” taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).

Following the investigation and the established unlawfulness of the conduct as described above, an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative monetary penalty.

5. Injunction order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary penalty provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by Imperatori Immobiliari s.r.l., through the video surveillance system, the unlawfulness of which has been established, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of

the administrative monetary penalty and its quantification, considering that the penalty must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility associated with the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations by the data controller related to breaches of data protection regulations;
- the circumstance that the party has submitted defensive writings declaring to have correctly posted suitable informational signs, substantiating the claims made with appropriate documentation.

It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this specific case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (Article 83, paragraph 1 of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the monetary penalty at €4,000.00 (four thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should be carried out.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Imperatori Immobiliari s.r.l., through the use of the video surveillance system installed at the accommodation facility named “Hotel Imperatori,” located in Rome, Via Gonella 15, in the terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

ORDERS

the company Imperatori Immobiliari s.r.l., VAT No. 10631411005, to pay the sum of €4,000.00 (four thousand) as an administrative monetary penalty for the violations indicated in this provision;

ENJOINS

the company Imperatori Immobiliari s.r.l. to pay the sum of €4,000.00 (four thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption...

of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is stated that pursuant to Article 166, paragraph 8 of the Code, the option for the offender to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction remains available within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of

the provision itself or within sixty days if the appellant resides abroad.

Rome, March 21, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei